

NONCOMPETITION AND CONFIDENTIALITY AGREEMENT

This Agreement is made as of February 14, 2023, between Larkspur Mechanical Services LLC, a New Jersey limited liability company with a branch office at 2210 Route 22 East, Union, New Jersey 07083 (the "Company"), and Miguel Duarte, an individual employed by the Company as a Service Technician Supervisor ("Employee").

RECITALS

The Company installs, services, and maintains commercial heating, ventilation, and air conditioning systems for commercial building owners and property managers, operating out of several branch locations across New Jersey. Employee supervises service technicians and interacts with the Company's customers in connection with that work, and as a result has access to information about the Company's customers, pricing, and service methods that the Company treats as confidential. Employee's supervisory duties include scheduling technician crews, reviewing service tickets, meeting with property managers at scheduled maintenance visits, and helping to prepare estimates for larger repair and replacement jobs at the branch locations where Employee has been assigned. In exchange for Employee's employment, Employee's access to that information, and the other terms of this Agreement, Employee agrees to the restrictions below, which the Company has kept narrow in line with Employee's role and are limited to what the Company believes is reasonably necessary to protect its customer relationships and confidential business information as its legitimate business interests, without imposing an undue hardship on Employee.

CONSIDERATION

Employee acknowledges that Employee's employment with the Company, Employee's access to the Company's customers and confidential business information described below, and Employee's rate of pay and benefits as a Service Technician Supervisor are good and sufficient consideration for the promises Employee makes in this Agreement.

LEGITIMATE BUSINESS INTEREST

The Company and Employee agree that the Company has a legitimate business interest in protecting the customer relationships built up at the branch locations where Employee has worked, and in protecting the confidential pricing, customer, and service information Employee has had access to through Employee's supervisory role, and that the restrictions below are intended to protect those interests and not to prevent Employee from working in the HVAC trade more broadly than is necessary to do so. Those relationships and that information took the Company years to build at each branch, through repeated service calls, maintenance contracts, and direct dealings between the Company's technicians and the property managers and building owners who rely on the Company for their commercial HVAC

needs, and Employee's supervisory access to that history is the specific thing the Company is trying to protect here — not Employee's general skill or experience as an HVAC technician, which Employee is free to use anywhere.

AT-WILL EMPLOYMENT

Employee's employment with the Company is at-will, meaning that either Employee or the Company may terminate the employment relationship at any time, with or without cause and with or without notice. Nothing in this Agreement shall be construed to alter Employee's at-will employment status, to guarantee employment for any specific duration, or to create any express or implied contract of continued employment.

CONFIDENTIALITY

Company Secrets. While you work for the Company, and after your employment ends for any reason, you agree to keep private everything you learn about the Company's business that isn't already public — things like who its customers are and what they buy, how the Company prices its work, its plans for new products or new markets, and how its internal systems and processes work. You will not tell anyone outside the Company about any of this, and you will not use it to benefit yourself or anyone other than the Company, unless your job requires it or the Company tells you in writing that it's all right to share it. When your employment ends, you agree to give back — or, if the Company asks, destroy — anything in your possession that contains this kind of information, including notes, files, drafts, and copies, in any format. Where any of this information also qualifies as a trade secret under applicable law, this promise continues for as long as it remains a trade secret, with no end date.

NONCOMPETITION

For a period of nine (9) months following the termination of Employee's employment with the Company for any reason, Employee shall not, directly or indirectly, work as a service technician, service technician supervisor, or in any substantially similar role involving the installation, service, or maintenance of commercial heating, ventilation, or air conditioning systems, for any business that competes with the Company, within thirty (30) miles of any Company branch location at which Employee worked during the twelve (12) months preceding the termination of Employee's employment.

The Company has limited this restriction to the specific branch locations where Employee actually worked, rather than every branch the Company operates, and to a thirty-mile radius around those locations, because that is the area in which the Company believes Employee's knowledge of its customers, pricing, and service methods from those branches could realistically be used against it, and the Company does not believe a broader restriction is necessary given Employee's role. The Company operates branch locations in several parts of New Jersey, and a technician supervisor assigned to one branch ordinarily has little or no

knowledge of the customers, pricing, or service history associated with a different branch on the other side of the state. For that reason, the Company has chosen not to write a statewide or company-wide restriction into this Agreement, even though it would be simpler to administer, because doing so would restrict Employee well beyond the branches where Employee actually built customer relationships and gained access to confidential pricing and service information.

This restriction does not prevent Employee from working in the HVAC trade generally, including for a competing business, outside the thirty-mile radius described above, or in a role that does not involve service, supervision, or customer-facing work of the kind Employee performed for the Company.

NON-SOLICITATION OF SCHEDULED CUSTOMERS

During employment and for a period of nine (9) months following the termination of Employee's employment for any reason, Employee shall not, directly or indirectly, solicit, call upon, or accept business from any customer identified on Schedule A attached to and made a part of this Agreement, for the purpose of providing any product or service competitive with those offered by the Company. Schedule A may be updated by the Company from time to time during Employee's employment by written notice to Employee to reflect changes in Employee's customer responsibilities, and the version of Schedule A in effect on the date Employee's employment terminates shall govern this Section. Employee acknowledges that the customers listed on Schedule A represent relationships the Company has invested substantial time and expense to develop and that Employee's access to those relationships was a direct result of Employee's employment with the Company.

The Company has limited this restriction to the specific customers named on Schedule A, rather than every customer of the Company, because those are the accounts Employee actually worked with, and the Company does not believe a broader customer restriction is reasonably necessary for a role at Employee's level.

RETURN OF COMPANY PROPERTY

Upon termination of employment for any reason, or at any earlier time upon the Company's request, Employee shall promptly return to the Company all property belonging to the Company, including without limitation all documents, files, records, computers, mobile devices, access cards, keys, and any other equipment or materials, together with all copies thereof, in whatever medium, and shall not retain any copies, extracts, or summaries of any of the foregoing. This includes, without limitation, any Company-issued tools, uniforms, identification badges, service vehicles, and diagnostic equipment in Employee's possession as of the date employment ends.

SEVERABILITY; REFORMATION; LEGITIMATE BUSINESS INTEREST

The parties agree that the restrictions in this Agreement are reasonable and necessary to protect the Company's legitimate business interests, including its confidential information, customer relationships, and goodwill, and are reasonably limited in time, geography, and scope to protect those interests without imposing an undue hardship on Employee or injuring the public. If, notwithstanding the foregoing, any restriction is found by a court to exceed what is reasonably necessary to protect the Company's legitimate business interests, the parties agree that the court shall reform the restriction to the maximum time, geographic, and scope limitations that the court determines are reasonable and necessary to protect those interests, and shall enforce the restriction as reformed. The invalidity or unenforceability of any provision of this Agreement shall not affect the validity or enforceability of any other provision.

SURVIVAL

The provisions of this Agreement that by their terms are intended to apply after termination of employment, including without limitation the confidentiality, non-solicitation, and intellectual property provisions, shall survive the termination of Employee's employment and the expiration of this Agreement.

GOVERNING LAW

This Agreement shall be governed by, and construed in accordance with, the laws of the State of New Jersey, without regard to principles of conflicts of law.

GENERAL

This Agreement may be signed in counterparts. The headings above are for convenience only and do not affect how this Agreement is read. Employee acknowledges having read this Agreement, having had the chance to ask questions about it or to have a lawyer look at it before signing, and understanding that Employee's supervisory duties and the branch locations where Employee has worked are the reason for the specific limits described above. If Employee changes roles within the Company such that Employee no longer supervises technicians or interacts directly with customers, the Company and Employee agree to talk about whether the restrictions above still make sense, though nothing in this sentence changes Employee's obligations unless the Company and Employee actually agree in writing to change them.

IN WITNESS WHEREOF, the parties have signed this Agreement as of the date first written above.

****LARKSPUR MECHANICAL SERVICES LLC****

By: _____ Name: Yolanda Prescott Title: Operations
Manager Date: February 14, 2023

****EMPLOYEE****

_____ Miguel Duarte Title: Service Technician Supervisor

Date: February 14, 2023

SCHEDULE A — RESTRICTED CUSTOMERS

1. Piermont Tower Property Group 2. Cranford Commons Management Corp. 3. Route 9
Retail Plaza Associates 4. Whitfield Business Park LLC 5. Garden State Medical Office
Partners 6. Northgate Industrial Realty Trust 7. Summit Ridge Office Campus LLC 8. Meridian
Warehouse Holdings Inc.